IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **27.11.2025** THROUGH VIDEO CONFERENCE

CORAM: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/72(CHE)/2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** Sherisha Solar SPV Two Pvt Ltd
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** 230-232 of CA, 2013

ORDER

CA(CAA)/72(CHE)2025

Present: Mr. Ashwin Raman, Ld. Counsel for the Applicant.

Vide separate order pronounced in the open Court, the Application is allowed.

Meetings are dispensed with.

-sd- **-sd-**

(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

(SANJIV JAIN)
MEMBER (JUDICIAL)

MS

Date: 27.11.2025

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement*

CA(CAA)/72(CHE)/2025

SHERISHA SOLAR SPV TWO PRIVATE LIMITED
(CIN: U74999TN2018PTC126030)
A COMPANY INCORPORATED UNDER COMPANIES ACT, 2013
HAVING REGISTERED OFFICE AT
2ND FLOOR, REFEX TOWERS,
STERLING ROAD, NO.313, VALLUVAR KOTTAM HIGH ROAD,
NUNGAMBAKKAM, CHENNAI, TAMILNADU – 600034
REPRESENTED BY ITS AUTHORIZED REPRESENTATIVE
MR. THIRUNAVUKARASU MANIKANDAN, DIRECTOR

… Applicant Company

*Order Pronounced on **27th November, 2025***

CORAM

SANJIV JAIN, MEMBER (JUDICIAL)
VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s): Pawan Jhabakh, Advocates

ORDER

1. Under consideration is a Company Application filed by **SHERISHA SOLAR SPV TWO PRIVATE LIMITED** under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations)

Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant Company. The said Scheme is also appended as "***Annexure 5***" to the Application.

2. The Applicant Company in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	PREFERENCE SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
APPLICANT COMPANY	Dispense with meeting	Dispense with meeting	Dispense with meeting	Dispense with meeting

3. The objectives of the Applicant Company are set out in Clause 3(A) of the Memorandum of Association. The main objects of the Applicant Company are extracted below,

> *"1. To engage in the business of electric power supply, generation and distribution and establishment of power supply stations and sub stations and works, including building, operating, managing and running them mainly based on non-conventional source of energy of wind based power based generation methods comprising mainly of wind mills; To engage in the business of electric power supply, generation and distribution and establishment of power supply stations and sub stations and works, including building, operating, managing and running them mainly based on nonconventional source of energy of solar power based generation methods by using solar power panels and also to engage in sale and supply of power to end users either directly by laying down of cables, wires and*

lines or through agencies, including governmental and local government and municipal corporations.

2. To carry on the business of generators, procurers, suppliers, distributors, transformers, converters, manufacturers, processors, developers, transmitters. producers, carriers, importers and exporters and dealers in electricity and any product or by-product derived from any such business."

(The Memorandum of Association of the Applicant Company is annexed and marked as ***Annexure A1***)

4. On perusal of the preamble to the Scheme, it is seen that the Applicant Company is the wholly-owned subsidiary of Refex Green Power Limited (Holding Company). The Holding Company also holds 1,40,03,418 0.01% Optionally Convertible Redeemable Preference Shares in the Applicant Company. Under the Scheme, it is proposed that the existing 0.01% Optionally Convertible Redeemable Preference Share held by Refex Green Power Limited, the Preference Shareholder be converted into 0.01% Optionally Convertible Redeemable Debentures. The expected benefits of the Scheme as enumerated in Clause 1.9 and 1.10 of the Preamble to the Scheme is extracted hereunder,

"1.9 Under the Scheme, it is proposed that the existing 0.01% Optionally Convertible Redeemable Preference Share held by Refex Green Power Limited, the Preference Shareholder be converted into 0.01% Optionally

Convertible Redeemable Debentures. The said restructuring exercise would facilitate and enable the Company to achieve an optimum capital and financial structure. The Scheme would enable the Company to have efficient performing of current and future projects. The Scheme would also ensure an efficient corporate financing structure for the Holding Company without altering the capital structure of the Company, enable an efficient, convenient economic platform for business potential and growth. The restructuring exercise would streamline the capital structure of the Company.

1.10 Further, the said reorganisation/ conversion Scheme would serve the interest of its stakeholder, and it would also result in increased administrative/ operational efficiency of both, the Company, and the Holding Company which would be beneficial to all the stakeholders. The Scheme would not in any manner affect the operations, business of the Company and the existing Power Purchase Agreements would continue to be operational.

5. It is stated in Clause 1.11 of the Scheme that the creditors are not affected by the proposed e-organisation, reduction and conversion of Preference Shares into Optionally Convertible Redeemable Debentures, which is extracted as under:

"1.11 The Creditors are in no way affected by the proposed re-organisation, reduction and conversion of Preference Shares into Optionally Convertible Redeemable Debentures. Further, the proposed adjustment would not in any way adversely affect the ordinary operations of the Company or the

ability of the Company to honour its commitments or to pay its debts in the ordinary course of business."

6. From the Certificate of Incorporation filed, it is seen that Applicant Company is a private company incorporated under the provisions of Companies Act, 2013 on 29.11.2018. The authorised and paid-up share capital of the Applicant Company as on 31.03.2025 are as follows,

Particulars	**Rupees**
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
1,49,90,000 Preference Shares of INR 10/- each	14,99,00,000/-
Issued subscribed and paid up	
10,000 Equity Shares of INR 10/- each	1,00,000/-
1,40,03,418 0.01% Non-Cumulative Optionally Convertible Redeemable Preference Shares of INR 10/- each	14,00,34,180/-

7. Upon the Scheme coming into effect, in terms of Clause 4.2 of the Scheme, the paid-up share will be as follows,

Total	**15,00,00,000**
Issued, Subscribed and Paid-up	
Equity Share Capital 10,000 shares of INR 10/- each	1,00,000
Total	**1,00,000**

8. The Applicant Company has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as the Audited

Financial Statements as on date 31.03.2024 and Provisional Financial Statements as on 31.12.2024. (The charter documents and the Financial Statements of the Applicant are annexed and marked as ***Annexure A1 and A2***)

9. The Board of Directors of the Applicant Company vide meeting held on **30.01.2025,** has approved the proposed Scheme as contemplated above. The copy of the resolution passed thereon has been placed on record by the Applicant Company.

10. As per Clause 2.3 of the Scheme, the Appointed Date means the "Effective Date" as mentioned in Clause 2.6 of the Scheme. In Clause 2.6, 'Effective Date' is defined as the date of coming into effect of the Scheme that shall occur on the last of the dates specified in clause 10.5 of this Scheme. According to Clause 10, the Scheme is conditional upon the approval of the shareholders and creditors of the Applicant Company and the sanction of this Tribunal. Clause 10.5 further elaborates that the Scheme shall come into effect only upon the approval/ sanction from the relevant members, creditors and Tribunal has been obtained and the certified copy of the order is filed with the concerned RoC. The relevant Clauses of the Scheme are extracted hereunder for reference,

> ***"2.3. "Appointed Date"*** *means "Effective Date" as mentioned in Clause 2.6*
>
> ***2.6. "Effective Date"*** *means the date of coming into effect Of the Scheme that shall occur on the last of the dates specified in clause 10.5 of this Scheme.*

10. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS

This Scheme is conditional on and subject to the following —

10.1. The approval of the Scheme by the respective requisite majorities in number and value by way of a meeting or dispensation of the shareholders and creditors of the Company including secured creditors of the Company in accordance with Section 230 of the Act.

10.2. The sanction by the Tribunal under Sections 230 read with Section 66 and other applicable provisions of the Act and other applicable provisions of the Act being obtained by the Company and the requisite orders of the Tribunal.

10.3. The filing with the concerned Registrar of Companies, of the certified copies of all necessary orders, sanctions and approvals mentioned above by the respective companies.

10.4. Any part of the Scheme shall be effective to the parties only if entire Scheme is approved by the Tribunal.

10.5. This Scheme, although to come into operation from the Effective Date, Shall not become effective until the last of the following dates, namely:

(A) That on which the last of the aforesaid approvals, permissions and orders as mentioned in clause 10.1, 10.2 and 10.3 above shall be obtained or passed

(B) That on which certified copies of order(s) of the NCLT under Section 230 of the Act shall be duly filed with the concerned Registrar of Companies.

The last of such dates shall be the "Effective Date" for the purpose of this Scheme. All references to the Scheme coming into effect shall refer to the "Effective Date"

7. The Statutory Auditors of the Applicant Company have examined the Scheme in terms of provisions of Sec. 230(7) of Companies Act, 2013 and the Rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors in this regard is placed at *"Annexure A10"* of the typed set of Documents filed along with the application.

8. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal issued the following directions: -

A. IN RELATION TO SHERISHA SOLAR SPV TWO PRIVATE LIMITED (TRANSFEROR COMPANY/ APPLICANT IN CA(CAA)/54(CHE)/2024)

I. EQUITY SHAREHOLDERS

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed at **Pgs. 131-159**. Certificate by the Chartered Accountant certifying the list of Equity Shareholders has been placed as *"Annexure 8"* typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company that there are 7 **(Seven)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record,

the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. OPTIONALLY CONVERTIBLE REDEEMABLE PREFERENCE SHAREHOLDERS

(i) There is **One (1)** Preference Shareholder, whose consent affidavit is placed at **Pgs. 161-165**. Certificate by the Chartered Accountant certifying the list of Preference Shareholders has been placed as ***"Annexure 9"*** typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company that there is **1 (One)** Preference Shareholder in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. SECURED CREDITORS

(i) There is **One (1)** Secured Creditor and the Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is placed at **Pg. 118** as ***Annexure A6*** of the typed set filed with the application. The consent affidavit of the secured creditors is filed as 'Index to Typed Set of Papers' vide S.R No. 4242 dated 07.10.2025.

(ii) Since it is represented by the Applicant Company that there is **1 (One)** Secured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

IV. UNSECURED CREDITORS

(i) There are **Three (3)** Unsecured Creditors, whose consent affidavits are placed at **Pgs. 120-128**. Certificate by the Chartered Accountant certifying the list of Unsecured Creditors has been placed as ***"Annexure 7"*** typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented that the consents of **2 (Two)** Unsecured Creditors representing **99.29%** of the total value of unsecured creditors by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

9. Accordingly, the Application stands **allowed**.

-Sd- **-Sd-**

VENKATARAMAN SUBRAMANIAN **SANJIV JAIN**

MEMBER (TECHNICAL) MEMBER(JUDICIAL)